

EXECUTIVE SUMMARY

President Bashar Assad has ruled the Syrian Arab Republic since 2000. The constitution mandates the primacy of Baath Party leaders in state institutions and society, and Assad and Baath party leaders dominate all three branches of government. An uprising against the government that began in 2011 continued throughout the year. The 2014 presidential election and the April 2016 parliamentary elections resulted in the election of Assad and 200 People's Council (Syrian parliament) seats for the Baath Party-led National Progressive Front, respectively. Both elections took place in an environment of widespread government coercion, and many Syrians residing in opposition-held territory did not participate in the elections. Observers did not consider the elections free or fair.

The government maintained control over its uniformed military, police, and state security forces, but it did not maintain effective control over foreign and domestic military or paramilitary organizations. These included Russian armed forces; Hizballah and the Islamic Revolutionary Guard Corps; nonuniformed progovernment militias, such as the National Defense Forces; and the Bustan Charitable Association, or "shabiha."

The most significant human rights abuses included unlawful and arbitrary killings by the government and its allies resulting from atrocities they committed during the conflict, including the repeated use of chemical weapons, including sarin and chlorine, against civilians, widespread "barrel bombing" of civilians and residential areas, systematic attacks on civilian infrastructure, attacks on medical facilities, extrajudicial executions, rape, including of children, as a weapon of war;

massacres, starvation and displacement of local civilian populations; mass forced disappearances; thousands of cases of torture, including sexual violence; harsh and life threatening conditions in prisons and detention centers, including deliberate denial of medical care; widespread arbitrary arrest and detention; tens of thousands of political prisoners; pervasive interference with privacy; recruitment and use of child soldiers; severe restrictions on freedoms of expression, including internet access, assembly, association, and movement; denial of humanitarian access to civilians, including displaced persons; rampant corruption; criminalization of same sex sexual activity and violence against LGBTI persons by government and extremist forces; and severe restrictions on workers' rights.

The government took no steps to investigate, prosecute, or punish officials who committed human rights violations or abuses. Impunity was pervasive and deeply embedded in the security forces and elsewhere in the government.

Government-linked paramilitary groups reportedly engaged in frequent violations and abuses, including massacres, indiscriminate killings, kidnapping of civilians, arbitrary detentions, and rape as a war tactic. Government-affiliated militias, including the terrorist organization Lebanese Hizballah, supported by Iran, repeatedly targeted civilians. Armed terrorist groups, such as the al-Qa'ida-linked Hayat Tahrir al-Sham (HTS), also committed a wide range of human rights abuses, including massacres, bombings, and kidnappings; unlawful detention; torture; unlawful killings; and forced evacuations from homes based on sectarian identity. While the government and its allies were responsible for most of the killings, the Islamic State extremist group ISIS committed massive abuses in territories it controlled in the Raqqa and Deir al-Zour Governorates. Human trafficking and the forcible recruitment and use of children in the conflict increased. There were reports of systematic rape and forced marriages of women and girls for sexual slavery among ISIS fighters. On August 15, U.S. Secretary of

State Rex Tillerson stated that “ISIS is clearly responsible for genocide against Yazidis, Christians, and Shia Muslims in areas it controls or has controlled. ISIS is also responsible for crimes against humanity and ethnic cleansing directed at these same groups, and in some cases against Sunni Muslims, Kurds, and other minorities.”

There also were reports of Kurdish forces displacing Arab residents after liberating areas from ISIS. During the year reports from local media and Syrian human rights groups indicated that Kurdish authorities arrested local civil council leaders, journalists, and other civilians. There were reports alleging that some members of the Syrian Democratic Forces (SDF), a coalition of Syrian Kurds, Arabs, Turkmen, and other minorities that included members of the Kurdish Peoples Protection Units (YPG), engaged in forced conscription, to include limited conscription of children, as well as reports alleging isolated incidents of torture and at least one incident of extrajudicial killing of persons suspected of ISIS affiliation by those who appeared to belong to the SDF based on their statements or their uniforms.

Section 1.

Respect for the Integrity of the Person, Including Freedom from:

A. ARBITRARY DEPRIVATION OF LIFE AND OTHER UNLAWFUL OR POLITICALLY MOTIVATED KILLINGS

There were numerous reports the government and its agents committed arbitrary or unlawful killings in relation to the conflict (see section 1.g.).

According to the Syrian Network for Human Rights (SNHR), as of March the conflict had killed at least 207,000 civilians. The government continued its use of

helicopters and airplanes to conduct aerial bombardment and shelling. The SNHR reported that government helicopters dropped at least 5,318 barrel bombs from January through October, resulting in the deaths of at least 110 civilians. Amnesty International (AI) reported that authorities killed between five thousand and 13,000 persons at the Sednaya military prison between September 2011 and December 2015, with no indication that the killing had ceased. In May a foreign government announced that it assessed the Syrian government had probably installed a crematorium within the Sednaya compound to permit its forces to dispose of prisoners' bodies with little evidence. On October 26, the Organization for the Prohibition of Chemical Weapons-UN Joint Investigative Mechanism issued its seventh report, which concluded that the Assad regime used the chemical weapon sarin in the April 4 attack that killed scores of persons in Khan Shaykhun. The report also determined that ISIS was responsible for using the chemical weapon sulfur mustard in September 2016 in Um-Housh.

Government and progovernment forces reportedly attacked civilians in hospitals, residential areas, schools, and settlements for internally displaced persons (IDPs) and refugee camps; these attacks included bombardment with improvised explosive devices, commonly referred to as "barrel bombs." The government continued the use of torture and rape, including of children. It used the massacre of civilians, as well as their forced displacement, rape, starvation, and protracted sieges that occasionally forced local surrenders, as military tactics.

B. DISAPPEARANCE

There were reports of disappearances by or on behalf of government authorities. The UN Commission of Inquiry (COI) reported the number of forced disappearances remained high. The majority of disappearances reported by activists, human rights observers, and international NGOs appeared to be politically motivated. In August 2016 the SNHR attributed 96 percent of the

estimated 75,000 forced disappearances to the government. The government reportedly targeted critics, specifically journalists, medical personnel, antigovernment protesters, their families, and associates.

In 2012, for example, the government arrested activist Bassel Khartabil, who was widely recognized for assisting citizens to evade the government's surveillance and online censorship. Bassel's health and whereabouts remained unknown until August, when his family received confirmation from an undisclosed source in Damascus that the government executed Bassel in October 2015.

The COI 2016 report stated that government forces continued to engage in mass arrests of injured persons attempting to leave besieged areas at checkpoints and in areas that fell under their control. Following the surrender of towns such as Darayaa and Moadimiyah after years of siege and starvation tactics, the government gave civilians the choice of relocating nearby but required opposition fighters to take personal weapons and relocate to Idlib Governorate. The government reportedly arrested men of fighting age, especially Sunni, perceived to be associated with opposition groups. The COI noted that the families of disappeared persons often feared to approach authorities to inquire about the locations of their relatives; those who did so had to pay large bribes to learn the locations of relatives or faced systematic refusal by authorities to disclose information about the fate of disappeared individuals.

As the government took control over eastern Aleppo in late December 2016, reports surfaced of military-age men being forcibly disappeared. There were also reports of the government forcibly conscripting military-age men.

AI reported the government provided no further information on the thousands of individuals who had disappeared since the start of the conflict or the 17,000 persons who disappeared since the 1970s. Human rights groups' estimates of the

total number of disappearances since 2011 varied widely, but all estimates pointed to disappearances as a pervasive and common practice. AI estimated that authorities had forcibly abducted more than 65,000 persons since the start of the conflict, including 58,000 civilians and seven thousand members of armed groups. A number of prominent political prisoners remained missing (see section 1.e.). The SNHR reported that government forces and progovernment militias were responsible for 5,228 cases of arbitrary arrest of men, women, and children from January through November.

Terrorist groups conducted kidnappings, particularly in the northern and eastern areas, targeting religious leaders, aid workers, suspected government affiliates, journalists, and activists. According to the COI, reports of enforced disappearances in territory held by ISIS also increased.

C. TORTURE AND OTHER CRUEL, INHUMAN, OR DEGRADING TREATMENT OR PUNISHMENT

The law prohibits torture and other cruel, inhuman, or degrading treatment or punishment and provides up to three years' imprisonment for violations. Activists, the COI, and local NGOs reported thousands of credible cases of government authorities engaging in frequent torture to punish perceived opponents, including during interrogations. Observers reported most cases of torture or mistreatment occurred in detention centers operated by each of the government's security service branches. Human Rights Watch (HRW) and the COI reported regular use of detention and torture of government opponents at checkpoints and facilities run by the air force, Political Security Division, General Security Directorate, and Military Intelligence Directorate. They identified specific detention facilities where torture occurred, including the Mezzeh airport detention facility, Military Security Branches 215, 227, 235, 248, and 291, Adra and Sednaya prisons, the Harasta Air Force Intelligence Branch, Harasta Military Hospital, Mezzeh Military Hospital 601,

and Tishreen Military Hospital. The COI also reported the Counterterrorism Court (CTC) and field military courts' reliance on forced confessions and information acquired through torture to obtain convictions. A large number of torture victims reportedly died in custody; the SNHR reported that 12,679 individuals died due to torture between early 2011 and June 2016; 99 percent of these cases occurred in government facilities (see section 1.a.).

Activists cited thousands of credible cases of security forces abusing and torturing prisoners and detainees and maintained that many instances of abuse went unreported. Some declined to allow reporting of their names or details of their cases due to fear of government reprisal.

The COI noted that torture methods remained consistent. These included beatings on the head, bodies, and soles of feet ("falaqua") with wooden and metal sticks, hoses, cables, belts, whips, and wires. Authorities also reportedly sexually assaulted detainees; administered electric shocks, including to their genitals; burned detainees with cigarettes; and placed them in stress positions for prolonged periods of time. A substantial number of male detainees reported being handcuffed and then suspended from the ceiling or a wall by their wrists for hours.

Other reported methods of severe physical torture included removing nails and hair, stabbings, and cutting off body parts, including ears and genitals. Numerous human rights organizations reported other forms of torture, including forcing objects into the rectum and vagina, hyperextending the spine, and putting the victim onto the frame of a wheel and whipping exposed body parts. Additionally, officers reportedly continued the practice of "shabeh," in which they stripped detainees naked, hung them for prolonged periods from the ceiling, and administered electrical shocks. In August 2016 AI and the Human Rights Data

Analysis Group published a detailed account of 12,270 documented killings and extensive use of torture in Sednaya Prison.

The use of psychological torture by the government also reportedly increased. One commonly reported practice was detention of victims overnight in cells with corpses of previous victims. The SNHR reported that psychological torture methods included forcing prisoners to witness the rape of other prisoners, threatening the rape of family members (in particular female family members), forcing prisoners to undress, and insulting prisoners' beliefs.

Various NGOs, including HRW, AI, and the SNHR, continued to report widespread instances of rape and sexual abuse, including of minors. The COI reported receiving reports of interrogators raping and sexually abusing male detainees held in Branch 285 of the General Directorate of Intelligence in Damascus. The COI also reported that government personnel raped and used other forms of sexual violence against women in detention facilities as well as at checkpoints. A COI report noted that authorities subjected prisoners to threats of sexual violence against their female relatives while in custody. A July report from the NGO Lawyers and Doctors for Human Rights noted that the government arbitrarily detained and tortured women in government detention centers in a "systematic and widespread pattern" that amounted to crimes against humanity. The report detailed the stories of eight women. One woman described prison guards molesting her during a strip search and then being tied to a bed before being "gang-raped by five men." During 15 days at the al-Mezzeh Military Airport, she reported being raped and sexually assaulted on at least three other occasions. During one interrogation government security personnel stripped her naked and raped her, while filming the ordeal.

Reports from multiple UN and NGO sources documented the prevalent use of rape and sexual violence, particularly but not exclusively against women,

throughout the conflict. According to the COI, the government and affiliated militias systematically perpetrated rape and other inhuman attacks against civilian populations in Deir al-Zour, Dara'a, Hama, Damascus, and Tartus Governorates. Detention centers were the most common location for abuse.

There were widespread reports that government security forces engaged in abuse and inhuman treatment of prisoners. According to the COI, most were civilians initially held at checkpoints or taken prisoner during military incursions. While the majority of accounts concerned male detainees, there were increased reports of female detainees suffering abuse in government custody. The frequency, duration, and severity of the reported abuse suggested victims' sustained long-term psychological and physical damage.

The COI reported that, beginning in 2011 and continuing throughout the conflict, security forces subjected detainees to mistreatment in military hospitals, often obstructing medical care or exacerbating existing injuries as a technique in abuse and interrogation. There were multiple reports of deaths in custody at the Mezzeh airport detention facility, Military Security Branches 215 and 235, and Sednaya Prison. Authorities consistently directed families of detainees seeking information to the Qaboun Military Police and Tishreen Military Hospital. In most cases authorities reportedly did not return the bodies of deceased detainees to their families. In January 2016 authorities confirmed the death of a paramedic, Amer Safaf, in Sednaya Prison with his body showing signs of torture after government forces arrested him in 2012.

AI's "Human Slaughter House" report documented that the government denied inmates adequate food, which led to malnutrition and starvation and left them vulnerable to contracting serious illnesses such as tuberculosis. AI's report included the testimonies of three detainees who reported losing at least half of their body weight during their detention in Sednaya.

There continued to be a significant number of reports of exceptionally brutal cases of abuse of children by the government. The COI noted regular reports of detention and torture of children under the age of 13, in some cases as young as 11, in government detention facilities. Officials reportedly targeted and tortured children because of their familial relations, or assumed relationships, with political dissidents, members of the armed opposition, and activist groups. The UN special representative for children and armed conflict reported that child detainees, largely boys, including those as young as 14, suffered similar or identical methods of torture practiced on adults. According to reliable witnesses, authorities continued to hold a number of children to compel parents and other relatives associated with opposition fighters to surrender to authorities.

Although authorities held fewer women and girls in detention than men, the SNHR estimated the number of female detainees in government prisons between the beginning of the uprising in 2011 and April 2016 to be more than seven thousand. The SNHR estimated that 2,850 women remained in prison.

In 2015 the Women's International League for Peace and Freedom reported that authorities often detained women for use in bargaining with their male family members. Authorities exchanged them for weapons of armed opposition groups. Security officers also subjected women to sexual exploitation while searching for their detained family members.

Prison and Detention Center Conditions

Prison and detention center conditions remained harsh and in many instances were life threatening due to food shortages, gross overcrowding, physical and psychological abuse, and inadequate sanitary conditions and medical care. The government prohibited independent monitoring of prison or detention center

conditions. Reports of mistreatment and abuse of prisoners were common. The COI reported that observers most often cited detention centers and prisons as locations for sexual violence and that authorities used the threat of rape as a tool to coerce confessions.

Physical Conditions: The SNHR reported that as of November it possessed a list of no fewer than 117,000 Syrians who remained imprisoned. Moreover, the SNHR estimated that, over the course of the conflict, more than 215,000 persons had been detained; the NGO attributed 99 percent of the detentions to the government. According to HRW, released detainees consistently reported abuse and torture in detention facilities and prison conditions that often led to deaths in custody. According to the COI, government detention facilities lacked food, water, space, hygiene, and medical care. Poor conditions were so consistent that the COI concluded they reflected state policy.

According to local and international NGOs, the government held prisoners and detainees in severely cramped quarters with little or no access to toilets, hygiene, medical supplies, or adequate food. In August 2016 the COI reported that conditions in detention facilities, and specifically those run by intelligence agencies, remained abysmal. Former detainees reported lice infestations, untreated injuries, and a general lack of necessities such as food, water, space, hygiene, and medical care.

Reports from multiple international NGO sources suggested there were also many informal detention sites and that authorities held thousands of prisoners in converted military bases and in civilian infrastructure, such as schools and stadiums, and in unknown locations. Activists asserted the government also housed arrested protesters in factories and vacant warehouses that were overcrowded and lacked adequate sanitary facilities.

Prior to the 2011 protests, the government usually held pretrial detainees separately from convicted prisoners. During the year authorities commonly held juveniles, adults, pretrial detainees, and convicted prisoners together in inadequate spaces. The COI reported that authorities held children as young as eight in prison with adults.

In some cases authorities transferred detainees from unofficial holding areas to intelligence services facilities. Detention conditions at security and intelligence service facilities continued to be the harshest, especially for political or national security prisoners. Facilities lacked proper ventilation, lighting, access to potable water or adequate food, medical staff and equipment, and sufficient sleeping quarters. According to the COI, most former detainees reported inadequate food, with some losing half their body weight while detained.

Inside prisons and detention centers, the prevalence of death from disease remained high due to unsanitary conditions and the withholding of medical care and medication. Local NGOs and medical professionals reported that authorities denied medical care to prisoners with pre-existing health needs, such as diabetes, asthma, and breast cancer, and denied pregnant women any medical care. Authorities retaliated against prisoners who requested attention for the sick. Released prisoners commonly reported sickness and injury resulting from such conditions. Information on conditions and care for prisoners with disabilities was unavailable.

According to the COI, conditions in detention centers run by nonstate actors such as ISIS violated international law. Detainees in Raqqa Governorate reported that ISIS held them in crowded, insect-infested cells with neither light nor bedding. ISIS reportedly denied prisoners access to adequate food or legal counsel and prevented communication outside the facility.

Conditions in detention centers operated by various opposition groups were not well known, but the COI and local NGOs reported accounts of arbitrary detention, torture, inhuman treatment, and abuse.

Administration: There were no credible mechanisms or avenues for prisoners to complain or submit grievances, and authorities routinely failed to investigate allegations or document complaints or grievances. Activists reported there was no ombudsman to serve on behalf of prisoners and detainees. The law provides for prompt access to family members, but NGOs and families reported inconsistent application of the law, with some families waiting as long as one year to see relatives. The government continued to detain thousands of prisoners without charge and incommunicado in unknown locations.

In areas where government control was weak or nonexistent, localized corrections structures emerged. There were varied reports of control and oversight, and both civilian and religious leaders were in charge of facility administration. Former police forces or members of armed opposition groups operated facilities in areas under the control of opposition forces. Nonstate actors often did not understand due process and lacked sufficient training to run facilities.

Independent Monitoring: The government prohibited independent monitoring of prison or detention center conditions, and diplomatic and consular officials had no greater access than in previous years. AI, for example, attempted to engage Syrian authorities on human rights concerns, including torture and other mistreatment, enforced disappearances, and deaths in custody, through various means since 2011. In January, AI sent a letter to authorities requesting clarifications regarding the allegations documented in “Human Slaughter House.” As of October, AI had not received a response to its January letter or to other requests for information.

Some opposition forces invited the COI to visit facilities they administered and allowed some international human rights groups, including HRW, to visit. The International Committee of the Red Cross/Red Crescent continued to negotiate with all parties, except ISIS, to gain access to detention centers across the country but was unable to gain access to any government-controlled facilities during the year.

D. ARBITRARY ARREST OR DETENTION

The constitution prohibits arbitrary arrest and detention, although a 2011 decree allows the government to detain suspects for up to 60 days without charge if suspected of “terrorism” and other related offenses. The law provides for the right of any person to challenge the lawfulness of his/her arrest or detention in court, but the government did not observe this requirement. Arbitrary arrests increased according to local news sources, and several human rights organizations reported detentions in the tens of thousands. In September the SNHR documented more than 85,000 persons forcibly disappeared since March 2011, reporting that the government disappeared 90 percent of them. In February 2016 the COI published a report entitled, “Out of Sight, Out of Mind: Deaths in Detention in the Syrian Arab Republic.” The report stated that “since March 2011, a countrywide pattern emerged in which civilians, mainly males above the age of 15, were arbitrarily arrested and detained by the Syrian security and armed forces or by militia acting on behalf of the government during mass arrests, house searches, at checkpoints, and in hospitals. Arrests targeted civilians perceived to be either supporting the opposition or insufficiently loyal to the government.”

HRW reported the government continued to use counterterrorism law to arrest and convict nonviolent activists on charges of aiding terrorists in trials that violated basic due process rights. Although authorities reportedly brought charges under the guise of countering violent militancy, allegations included peaceful acts such

as distributing humanitarian aid, participating in protests, and documenting human rights abuses.

National security forces failed to respond to or protect large regions of the country from violence. AI reported that armed groups detained suspected government supporters, local activists, foreign journalists, aid workers, and others. The COI's 2016 report also noted that nonstate armed groups, including Ahrar al-Sham and the HTS, took hostages, especially women and children, to force prisoner exchanges with the government or other armed groups or for ransom (see section 1.g.).

ROLE OF THE POLICE AND SECURITY APPARATUS

The government's multiple security branches traditionally operated autonomously with no defined boundaries between their areas of jurisdiction. Military Intelligence and Air Force Intelligence reported to the Ministry of Defense, the Political Security Directorate reported to the Ministry of Interior, and the General Intelligence Directorate reported directly to the Office of the President. The Interior Ministry controlled the four separate divisions of police: emergency police, traffic police, neighborhood police, and riot police.

Government-affiliated shabiha forces reorganized and in 2013 rebranded themselves as the National Defense Forces (NDF). These groups engaged in armed conflict and arrested, detained, and tortured those suspected of supporting the opposition. The NDF integrated with government-affiliated forces. There also were other progovernment militias in addition to the NDF.

Impunity continued to be a widespread problem. The General Command of the Army and Armed Forces may issue arrest warrants for crimes committed by

military officers, members of the internal security forces, or customs police during their normal duties; military courts must try such cases. Security forces operated independently and generally outside the control of the legal system. There were no known prosecutions or convictions of police and security force personnel for abuse or corruption and no reported government actions to reform the security forces or police.

Opposition forces established irregularly constituted courts and detention facilities in areas under their control, which varied greatly in organization and adherence to judicial norms. Some groups upheld the country's law, others followed a 1996 draft Arab League Unified Penal Code based on sharia (Islamic law), while others implemented a mix of customary law and sharia. The experience, expertise, and credentialing of opposition judges and religious scholars also varied widely, and dominant armed militias in the area often subjected them to their orders.

ISIS claimed that it based administration of justice in the territory it controlled on religious law. ISIS purportedly authorized its police forces, known as "hisbah," to administer summary punishment for violations of ISIS's morality code.

Local media sources and human rights groups such as Syrians for Truth and Justice reported that, in areas under its control, the YPG, considered to be the military wing of the Kurdish Democratic Union Party (PYD), arrested journalists, human rights activists, opposition party members, and persons who refused to join Kurdish armed forces groups. In some instances the location of the detainees remained unknown.

ARREST PROCEDURES AND TREATMENT OF DETAINEES

The law generally requires a warrant for arrest in criminal cases, but police often cited emergency or national security justifications for acting without a warrant, permitted under the law. Police usually brought arrested individuals to a police station for processing and detention until a trial date was set. The law stipulates that the length of time authorities may hold a person without charge is limited to 60 days, but according to various NGOs, activists, and former detainees, police held many individuals for longer periods or indefinitely. Civil and criminal defendants have the right to bail hearings and possible release from detention on their own recognizance. The legal system inconsistently applied this right, particularly with pretrial detainees. At the initial court hearing, which can be months or years after the arrest, the accused may retain an attorney at personal expense or the court may appoint an attorney, although authorities did not assure lawyers access to their clients before trial. According to local human rights organizations, denial of access to a lawyer was common.

In cases involving political or national security offenses, authorities reportedly often made arrests in secret with cases assigned in an apparently arbitrary manner to military, security, or criminal courts. The government reportedly detained suspects incommunicado for prolonged periods without charge or trial and denied them the right to a judicial determination of their pretrial detention. In most cases authorities reportedly did not inform detainees of charges against them until their arraignment, often months after their arrest. Security detainees did not have access to lawyers before or during questioning or throughout preparation and presentation of their defense. The number of suspects accused of political and national security offenses reportedly increased compared with previous years.

The government often reputedly failed to notify foreign governments when it arrested, detained, released, or deported their citizens, especially when the case

involved political charges. The government also failed to provide consular access to foreign citizens known to be in its prisons and, on numerous occasions, claimed these individuals were not in its custody or even in the country.

Arbitrary Arrest: Security forces continued their previous practices and reportedly increased arbitrary arrests, but detainees had no legal redress. Reports continued of security services arresting relatives of wanted persons to pressure individuals to surrender. Police rarely issued or presented warrants or court orders before an arrest. According to reports the security branches secretly ordered many arrests and detentions. Activists and international humanitarian organizations stated that government forces continued to conduct security raids in response to antigovernment protests throughout urban areas. In areas under government control, security forces engaged in arbitrary arrests. The COI reported that authorities arbitrarily arrested men and boys over age 12 at some checkpoints. Often authorities cited no reason for arresting civilians.

Checkpoints operated by the government were a commonly reported location for arbitrary arrests, sometimes resulting in transfer to a long-term detention facility or disappearance. Government military and security forces reportedly arrested men at checkpoints solely for being of military age. According to the COI, there continued to be frequent accounts of enforced disappearances following arrest at checkpoints.

Multiple reports from local and international NGOs stated that the government prevented the majority of those detained from contacting their relatives or obtaining a lawyer. When authorities occasionally released detainees, it was often without any formal judicial procedures. Hundreds of detainees interviewed by human rights groups stated that they had been arrested, detained, questioned, and released after months of detention without seeing a judge or being sentenced.

Pretrial Detention: Lengthy pretrial detention remained a serious problem.

Authorities reportedly held many detainees incommunicado for years before bringing them to trial. A shortage of available courts and lack of legal provisions for speedy trial or plea bargaining also contributed to lengthy pretrial detentions. There were numerous reported instances when the length of detention exceeded the sentence for the crime. Percentages for prison/detainee population held in pretrial detention and the length of time held were not available during the year.

Syrian human rights groups continued to highlight the plight of detainees and advocate for their release.

Detainee's Ability to Challenge Lawfulness of Detention before a Court: By law persons arrested or detained regardless of whether on criminal or other grounds are entitled to challenge in court the legal basis or arbitrary nature of their detention and any delay in obtaining judicial process. If the court finds persons to have been detained unlawfully, they are entitled to prompt release and/or compensation. Not all detainees, however, had the ability to challenge the lawfulness of their detention before a court or obtain prompt release and compensation even if found to have been unlawfully detained.

Amnesty: The March 2016 Cessation of Hostilities statement called for the United Nations to form a committee to monitor the release of detainees periodically; however, there was no progress made on release of detainees.

E. DENIAL OF FAIR PUBLIC TRIAL

The constitution provides for an independent judiciary, but authorities regularly subjected courts to political influence, and outcomes of cases with political context appeared predetermined.

Government authorities detained without access to fair trial tens of thousands of individuals, including those associated with NGOs, human rights activists, journalists, relief workers, religious figures, and medical providers. Government authorities rigorously denied citizens the right to a fair public trial and the ability to exercise civil liberties and freedoms of expression, movement, peaceful assembly, and association.

TRIAL PROCEDURES

The constitution provides for the right to a fair trial, but the government did not respect judicial independence.

The law presumes defendants innocent. Defendants have the right to prompt, detailed notification of the charges against them with interpretation as necessary, although authorities did not verifiably enforce this right, and a number of detainees' families mentioned that the accused were unaware of the charges facing them. Trials are public, except for those involving juveniles or sexual offenses. The law entitles defendants before civil and criminal courts to representation of their choice; the courts appoint lawyers for indigents. It was unknown if attorneys had adequate time and facilities to prepare a defense. Human rights lawyers noted, however, that in some politically charged cases, the government provided prosecution case files to defense lawyers that did not include any evidence. Defendants may present evidence and confront their accusers. Defendants may not legally be compelled to testify or confess guilt, but family members and NGOs reported that torture or intimidation from judges and prosecutors sometimes elicited false confessions. Convicted persons may appeal verdicts to a provincial appeals court and ultimately to the Court of Cassation.

Not all citizens enjoyed these rights equally, in part because interpretations of religious law provide the basis for elements of family and criminal law and discriminate against women. Some personal status laws applied sharia law regardless of the religion of those involved. Additionally, news media and NGO reports suggested the government denied some, and in certain cases all, of these protections to those accused of political crimes or violence against the government. Sentences for persons accused of antigovernment activity tended to be harsh, with violent offenders and nonviolent offenders receiving similar punishments. The Violations Documentation Center reported that the number of cases referred to the CTC exceeded 80,000 by April 2016, two and one-half years after it began accepting cases. According to the SNHR, the majority of those tried received five- to 20-year prison sentences. The government did not permit defendants before the CTC to have legal representation, although activists reported individuals charged under the counterterrorism law could retain attorneys to move their trial date.

In opposition-controlled areas, legal or trial procedures varied by locale. Local human rights organizations reported that local governing structures assumed these responsibilities. HRW reported that civilians administered these processes employing customary sharia laws in some cases and national laws in others. Sentencing by opposition sharia councils sometimes resulted in public executions, without an appeals process or visits by family members.

According to local NGOs, opposition-run sharia councils continued to discriminate against women, not allowing them to serve as judges or lawyers or to visit detainees.

In July the HTS cemented its power in Idlib by defeating Ahrar al-Sham forces and monopolizing key assets in the province, including many of the local sharia courts. Following its military gain in Idlib, the HTS carried out arbitrary arrests of

media activists and relief workers who had criticized the HTS's policy on social media, according to the SNHR. The HTS also subsequently arrested protesters and members of rebel groups at odds with the HTS, and as of December, their status was unknown. The HTS also targeted humanitarian organizations, claiming these organizations were affiliated with rebel groups at odds with the HTS. According to the SNHR, the HTS arrested dozens of their staff and interrogated them before eventually releasing them. The HTS denied those arrested the opportunity to challenge in court the legal basis or arbitrary nature of their detention. The HTS also dissolved local councils in Idlib that were not supporting its objectives.

In the territory it controlled, ISIS purported to establish courts to preside over its interpretation of religious law headed by judges with unknown credentials based on an unknown selection process.

In the territories it controlled (the Democratic Federation of Northern Syria), the Kurdish authorities created a legal code based on the "Social Charter." Reports described the Social Charter as a mix of Syrian criminal and civil law with laws concerning divorce, marriage, weapons ownership, and tax evasion drawn from EU law. The justice system consisted of courts, legal committees, and investigative bodies. There were reports that the system was robust, well funded, and supported by police in the region. There were also reports that it lacked experienced staff, was too closely aligned with the PYD, and was biased in favor of Kurds.

POLITICAL PRISONERS AND DETAINEES

Under the Assad government, and specifically since the advent of the conflict, the government's violations against detainees increased dramatically. AI reported the

systematic arrest of tens of thousands of citizens since 2011. At greatest risk were those perceived to oppose the government, including peaceful demonstrators, human rights activists, and political dissidents. The four intelligence agencies—Air Force Intelligence, Military Intelligence, Political Security, and General Intelligence—largely conducted the arrests.

AI reported that the total number of political prisoners and detainees was difficult to determine in view of the lack of government information and absence of government transparency. Authorities continued to refuse to divulge information regarding numbers or names of persons detained on political or security-related charges. As of September the Violations Documentation Center listed more than 65,000 political prisoners arrested since 2011. AI reported that authorities held them generally without charge or trial and did not inform their families.

Prison conditions for political or national security prisoners, especially accused opposition members, reportedly continued to be much worse than those for common criminals. According to local NGOs, authorities deliberately placed political prisoners in crowded cells with convicted and alleged felons and subjected them to verbal and physical threats and abuse. Political prisoners also reported they often slept on the ground due to lack of beds and faced frequent searches. According to reports from families, authorities refused many political prisoners access to family and counsel. Some former detainees and human rights observers reported the government denied political prisoners access to reading materials, including the Quran, and prohibited them from praying in their cells.

Many prominent civilian activists and journalists detained or forcibly disappeared following the 2011 protests reportedly remained in detention. There were no known developments in the majority of cases of reported disappearances from prior years, including the following persons believed forcibly disappeared by government forces: Abdel Aziz Kamal al-Rihawi; Alawite opposition figure Abdel Aziz al-Khair;

Kurdish activist Berazani Karro; Yassin Ziadeh, brother of dissident Radwan Ziadeh; human rights lawyer Khalil Ma'touq and his assistant, Mohamed Zaza; human rights activist Adel Barazi; and peace activist and theater director Zaki Kordillo and his son, Mihyar Kordillo. (See section 1.b. for information on Bassel Khartabil.)

There were no updates in the kidnappings of the following persons believed to have been abducted by ISIS, armed opposition, or unidentified armed groups: activists Razan Zaitouneh, Wael Hamada, Samira Khalil, and Nazim Hamadi; religious leaders Bolous Yazigi and Yohanna Ibrahim; and peace activist Paulo Dall'Oglio. These individuals were among the estimated thousands of disappearances reported by activists and media.

HRW reported that courts continued to detain activists under the counterterrorism law implemented following the lifting of the Emergency Law in 2011. The government established the CTC under the Ministry of Justice to apply the law. Authorities held some detainees under this law at Adra central prison in Damascus pending trial. The amnesties enacted in 2014 and 2015 included some detainees held under counterterrorism charges, but NGOs and activists reported the government released very few such individuals under the amnesties. Authorities later rearrested many of those released.

Local NGOs reported ISIS detained and harassed domestic human rights activists, humanitarian aid workers, and religious figures. The COI reported that in Raqqa Governorate ISIS detained hundreds of persons, including women and community activists, who opposed its rule.

CIVIL JUDICIAL PROCEDURES AND REMEDIES

Government civil remedies for human rights violations were functionally nonexistent. In areas under their control, opposition groups did not organize consistent civil judicial procedures. ISIS and other extremist groups had no known civil judicial mechanisms in the territories they controlled.

In the Kurdish-administered parts of northeastern Syria, civilian peace and reconciliation committees reportedly resolved civil disputes before elevating them to a court.

PROPERTY RESTITUTION

Security forces routinely seized detainees' property and personal items. With the onset of civil unrest, authorities increased confiscation of personal telephones, computers, and electronics. Security forces did not catalog these items in accordance with the law, and although detained individuals had the right to retrieve their confiscated belongings after release, authorities often did not return the property. According to media reports and activists, government forces also seized property left by refugees or internally displaced persons.

The COI reported that the government implemented legislative measures to dispossess of their property persons who opposed the government, including by impeding displaced persons from registering or retaining private property. For example, recent presidential decrees require in-person registration and contestation of land titles, making it all but impossible for the displaced to retain their property.

According to humanitarian aid workers, ISIS seized property from international and local aid workers at checkpoints that ISIS controlled throughout the country.

F. ARBITRARY OR UNLAWFUL INTERFERENCE WITH PRIVACY, FAMILY, HOME, OR CORRESPONDENCE

The law prohibits such actions, but they occurred routinely. Police frequently bypassed search warrant requirements in criminal cases by citing security reasons or emergency grounds for entry into private property. Random home raids occurred in large cities and towns of most governorates where the government maintained a presence, usually following large antigovernment protests or opposition attacks against government targets.

The government continued to open mail addressed to both citizens and foreign residents and routinely monitored internet communications, including email (see section 2.a.).

The government continued to bar membership in some political organizations, including Islamist parties, and often arrested their members (see section 3).

G. ABUSES IN INTERNAL CONFLICT

The government, opposition groups, the SDF, and ISIS continued to participate in armed combat throughout the year. The most egregious human rights violations and abuses stemmed from the state's widespread disregard for the safety and well-being of its citizens. This manifested itself in a complete denial of citizens' ability to choose their government peacefully, a breakdown in the ability of law enforcement authorities to protect the majority of citizens from state and nonstate violence, and the use of violence against civilians and civilian institutions. Reports indicated that the government arbitrarily and unlawfully killed, tortured, and detained persons on a wide scale. Attacks against schools, hospitals, mosques, churches, water stations, bakeries, markets, civil defense force centers, and houses were common throughout the country.

As of October there were more than 5.2 million Syrian refugees registered with the Office of the UN High Commissioner for Refugees (UNHCR) in neighboring countries and 6.3 million IDPs. The government frequently blocked access for humanitarian assistance and removed items such as medical supplies from convoys headed to civilian areas, particularly areas held by opposition groups.

The Office of the UN High Commissioner for Human Rights reported that more than 250,000 persons had died since the start of protests in 2011, but the office stopped recording this statistic in 2014. Media sources and human rights groups estimated up to 470,000 persons had been killed since the beginning of the conflict, with estimates of more than 200,000 civilians killed.

In January media outlets widely reported that the government used “surrender or starve” tactics in hard-to-reach and besieged areas of the country. Soldiers surrounding besieged areas set up checkpoints to profit from the limited supply of goods, prices for which rose multiple times in besieged areas. The COI stated that the use of siege warfare “has affected civilians more tragically than any other tactic employed by warring parties in the conflict.” In November in a report called, “We Leave or We Die: Forced Displacement Under Syria’s ‘Reconciliation’ Agreements,” AI reported that the government and its allies offered “reconciliation” agreements to communities “after prolonged sieges and bombardment” that led to “the mass displacement of civilians.” AI claimed some of the sieges amounted to war crimes and crimes against humanity. The report stated that some armed opposition groups also besieged populations, which in many cases amounted to war crimes. According to the United Nations, as of the end of September, nearly 420,000 Syrian men, women, and children countrywide remain trapped in besieged locations, with the government responsible for besieging approximately 95 percent.

Government forces, ISIS, and opposition forces reportedly attacked civilian institutions, including schools, hospitals (although the opposition attacked these less frequently), religious establishments, and bakeries.

Killings: The government reportedly committed the majority of killings throughout the year (see section 1.a.).

Government killings and the use of lethal tactics reportedly increased in the beginning of the year but declined subsequently due to de-escalation agreements. The SNHR reported 8,802 civilian deaths from January through October. Government forces killed the plurality of civilians.

Reports from NGOs, including reports cited by the United Nations, indicated that summary killings of civilians took place in the city of Aleppo in December 2016 as government forces retook opposition-held areas. The COI reported that daily Syrian and Russian air strikes “claimed hundreds of lives and destroyed vital civilian infrastructure.” Reports also indicated that government and allied forces targeted members of first-responder groups and that men between the ages of 30 and 50 were either detained by the government or immediately conscripted into the army. Reports cited by the United Nations also indicated that armed rebel groups prevented some civilians from escaping.

Progovernment militias reportedly continued to carry out mass killings. According to the SNHR, government-affiliated sectarian militias perpetrated massacres in the cities of Homs and Aleppo.

The COI reported that in February the armed group Liwa al-Aqsa shot and killed or beheaded at least 128 armed group fighters it had detained near Khazanat Khan Sheikhoun in Idlib. Later that month civilians in the area discovered two

mass graves containing corpses of armed group fighters, including at least two of which had been minors.

Extremist and terrorist groups also reportedly committed a large number of abuses and violations. Multiple media outlets reported that ISIS shelled the al-Qusour neighborhood of Deir al-Zour in October, killing at least nine civilians, including five children. The COI reported that in January a fuel truck blast in Azaz believed to be carried out by ISIS killed at least 48 persons and injured another 60. The COI reported ISIS's continued executions of those perceived to violate its strict religious rules, including the death penalty applied to women accused of adultery and men accused of sodomy. There were isolated allegations that the SDF tortured and in one case killed persons accused of affiliation with ISIS. A video available at the website of the SNHR shows three individuals shooting and apparently killing a handcuffed man. According to the SNHR, one of the shooters speaks to the camera and says this is the fate of anyone who stands in the way of the YPG or sides with ISIS. An SDF statement in July said the SDF would investigate the allegations and hold accountable those found responsible. There were reports suggesting that the SDF generally adheres to its responsibilities under the Law of Armed Conflict.

Abductions: The government was reportedly responsible for the majority of disappearances during the year. Armed extremist groups not affiliated with the government also reportedly kidnapped individuals, particularly in the northern areas, targeting religious leaders, aid workers, suspected government affiliates, journalists, and activists. In September the SNHR documented more than 85,000 persons still forcibly disappeared since March 2011, reporting that the government disappeared 90 percent of them.

According to reliable NGO reports, government forces as well as ISIS routinely kidnapped and detained aid providers and severely restricted humanitarian access

to territories under their respective control. Activists reported aid workers in ISIS-controlled territory were at high risk of abduction or violence.

In 2014 ISIS abducted thousands of Yazidi women from Iraq, as well as several Christians, and brought them to Syria for sale as sex slaves in markets or as rewards for ISIS fighters. Fighters held the women as slaves and subjected them and other captured women and girls to repeated sexual violence, systematic rape, forced marriages, and coerced abortions. In interviews with the COI, the women described multiple rapes by several men, including incidents of gang rape. Numerous NGOs and activists also reported that ISIS fighters raped women in ISIS-held areas or forced them to marry ISIS fighters. Thousands of abducted girls and women, however, remained missing.

In June 2016 the COI issued a report called, “They Came to Destroy: ISIS Crimes Against the Yazidis” that concluded, “ISIS has committed the crime of genocide as well as multiple crimes against humanity and war crimes against the Yazidis, thousands of whom are held captive in the Syrian Arab Republic where they are subjected to almost unimaginable horrors.”

The location and status of Khalil Arfu and Sukfan Amin Hamza from Derek, al-Hasakah Governorate, and members of the Kurdistan Democratic Party remained unknown. Syrian Orthodox Archbishop Yohanna Ibrahim and Greek Orthodox Archbishop Paul Yazigi, kidnapped in 2013, remained unaccounted for at year’s end.

The COI reported that a dramatic rise in hostage taking, which was often sectarian in nature, triggered reprisals and fueled intercommunal tension. Opposition armed groups abducted civilians and members of government forces to enable prisoner exchanges and for ransom money to purchase weapons.

Physical Abuse, Punishment, and Torture: According to reliable NGO reports, the government and its affiliated militias consistently engaged in physical abuse, punishment, and torture of both opposition fighters and civilians. Government agents allegedly targeted individuals with previous ties to foreign governments that favored the opposition; it also targeted family members and associates of such individuals. Government officials reportedly abused prisoners and detainees, as well as injured and sick persons, and raped women and men as a tactic of war. Activists reported that government detention centers did not provide medical care to women during pregnancy or birth. Additionally, according to the COI, the “Caesar photographs” smuggled out of the country in 2014 by a former government photographer documented the torture and severe malnourishment of more than 11,000 deceased detainees between 2011 and 2013.

AI’s research into the Sednaya military prison determined that the government executed thousands of detainees, mostly Sunni, held in Sednaya. The organization’s report stated that the government tried and sentenced Sednaya prisoners in one of two military field courts in the al-Qaboun neighborhood of Damascus. Prison staff transported detainees to and from court in trucks, where their trials lasted between one and three minutes. AI reported that judges used forced confessions obtained by subjecting prisoners to torture. Prisoners sentenced to death were subsequently transported to an execution room, where they were met by an execution panel that included the director of Sednaya, the military prosecutor of the Military Field Court, and a representative from the intelligence agencies.

According to the report, guards subsequently led blindfolded detainees onto platforms, where prison staff placed nooses around their necks and immediately hanged them. Prison staff left the executed detainees to hang for approximately 15 minutes. Then, AI reported, a doctor determined if any of the detainees

exhibited signs of life. Prison assistants pulled downward those believed to be alive to break the necks of the detainees.

According to multiple sources, the government killed as many as 50 detainees per day at Sednaya. In May a foreign government released information indicating that the government probably installed a crematorium within the Sednaya military prison complex to provide the ability to dispose of prisoners with little evidence.

The SNHR, and Lawyers and Doctors for Human Rights reported that authorities forced prisoners to witness the rape of other prisoners, threatened them with the rape of family members (in particular female family members), forced them to undress, and insulted their beliefs. According to the COI, the government and affiliated militias systematically perpetrated rape and other attacks on civilian populations in Deir al-Zour, Dara'a, Hama, Damascus, and Tartus Governorates. Detention centers were the most common location for reported abuse, but attacks also occurred during military raids and at checkpoints. Reports included instances in which multiple attackers, usually soldiers and shabiha, gang-raped women in their homes, sometimes in front of family members. Observers believed sexual violence was widespread and underreported. The SNHR noted an increased use by authorities of sexual violence against women before granting permission to depart besieged areas or to return with medical supplies and food.

There were widespread reports that ISIS also engaged in abuses and brutality. According to the COI, ISIS increased brutal treatment of those it captured in Raqqa, Deir al-Zour, and Aleppo Governorates. ISIS frequently punished victims publicly and forced residents, including children, to watch unlawful killings and amputations. Activists, NGOs, and media reported numerous accounts of women in ISIS-held territory facing arbitrary and severe punishments, including execution by stoning. ISIS also committed abuses systematically against captured Free Syrian Army (FSA) and YPG fighters. ISIS fighters reportedly beat captives

(including with cables) during interrogations and killed those held in its detention centers in Raqqa and Aleppo Governorates. ISIS also beat persons because of their dress; several sources reported ISIS members beat women for not covering their faces. ISIS justified its use of corporal punishment, including amputations and lashings, under religious law.

The COI also reported in previous years that armed groups, under the banner of the FSA, tortured and executed suspected government agents, members of the shabiha, and collaborators. The COI noted that some opposition groups subjected detainees suspected of being members of progovernment militias to severe physical or mental pain and suffering to obtain information or confessions, or as punishment or coercion. The report also noted instances in which the HTS and ISIS arbitrarily detained and tortured individuals passing through checkpoints along the country's northern border.

Child Soldiers: Several sources documented the continued recruitment and use of children in combat. The COI reported that progovernment militias enlisted children as young as 13. The COI reported the government sometimes paid children between the ages of six and 13 to be informants, exposing them to danger. In the earlier years of the conflict, most of the children recruited by armed forces and groups were boys between 15 and 17 years old and served primarily in support roles away from the front lines.

HRW reported opposition forces used children under the age of 18 as fighters. According to HRW and the COI, numerous groups and factions failed to prevent the enlistment of minors, while ISIS and the HTS actively recruited children as fighters. The COI reported that armed groups "recruited, trained, and used children in active combat roles." In Raqqa Governorate, according to the COI, ISIS recruited and enlisted children as young as 10 years old. In March the COI received a report that a 14-year-old boy approached an SDF recruitment center in

Tal Abyad voluntarily, was accepted by authorities, and was killed in combat in the Raqqa countryside in early June. Several humanitarian organizations and NGOs working in areas recently liberated from ISIS by the SDF, as well as media organizations including Reuters, alleged that elements of the SDF and the YPG were engaged in forced conscription. There were reports that, in some areas, the SDF worked with tribes and local councils to negotiate approval of and voluntary compliance with local conscription laws in support of the fight against ISIS.

In September the international NGO Geneva Call reported it had conducted training for more than 100 SDF commanders, which included the law of armed conflict and the topic of children in armed conflict. The COI reported in 2014 that the YPG had demobilized child soldiers from its ranks and began monitoring adherence to its commitments to eliminate children from fighting. In March the COI reported that the YPG continued to conscript men and boys forcibly.

Also see the Department of State's annual *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Other Conflict-related Abuses: The September COI report documented 25 incidents of chemical weapons use between 2013 and March, of which government forces perpetrated 20 primarily against civilians. The COI reported that during the year government forces further used chemical weapons against civilians in the towns of al-Latamneh and Khan Shaykhun and in eastern Ghouta.

The COI investigated the April 4 attack by government forces on Khan Shaykhun, which the COI determined involved the use of sarin gas or a sarin-like substance, that killed dozens of civilians and injured hundreds more. In addition to its own fact-finding mission, the COI took into account the findings of the Organization for the Prohibition of Chemical Weapons. The COI reported that Russian and Syrian

officials denied Syrian forces used chemical weapons in this incident, claiming that air strikes conducted by Syrian forces struck a terrorist chemical weapons depot.

The COI report stated that a Sukhoi 22 (Su-22) aircraft conducted four air strikes in Khan Shaykhun at approximately 6:45 a.m. Only Syrian forces operated such aircraft. The commission identified three conventional bombs and one chemical bomb. The COI documented that the chemical bomb killed at least 83 persons, including 28 children and 23 women, and injured another 293 persons, including 103 children. The extensive information independently collected by the commission on symptoms suffered by victims was consistent with sarin exposure. Based on the evidence and testimonies collected, the COI found reasonable grounds to believe that Syrian forces committed the war crimes of using chemical weapons and indiscriminate attacks in a civilian inhabited area.

In its August 2016 report, the Organization for the Prohibition of Chemical Weapons-UN Joint Investigative Mechanism (established to attribute responsibility for already confirmed chemical warfare incidents) determined responsibility at a “sufficient” level for three of the nine attacks it reviewed. These attacks were a mustard gas attack by ISIS in Marea, Aleppo Governorate (August 2015), and two instances of chlorine used as a weapon by the government, specifically the Syrian Arab Air Force, in Talmenes, Idlib Governorate (April 2014), and Sarmin, Idlib Governorate (March 2015). A report from the Joint Investigative Mechanism in October 2016 found that the government also used weaponized chlorine in 2015 in Qmenas.

Both the government and opposition forces reportedly impeded the flow of humanitarian assistance. According to the UN Office for Humanitarian Assistance, by August approximately 3.47 million persons were living in hard-to-reach and besieged locations.

The COI stated that government forces, opposition forces, and ISIS employed sieges, deliberately restricting the passage of relief supplies and access by humanitarian agencies. According to reports, government forces were responsible for the majority of such activity. According to the United Nations, as of the end of September, nearly 420,000 men, women, and children countrywide remain trapped in besieged locations, with the government responsible for besieging approximately 95 percent. Acute restrictions on food and medicine reportedly caused malnutrition-related deaths, as well as outbreaks of hepatitis, cutaneous leishmaniasis, typhoid, and dysentery.

De-escalation zone agreements reached under the auspices of Iran, Russia, and Turkey called for improved humanitarian access; however, an October report from a humanitarian organization operating on the ground concluded that Astana de-escalation areas had not yet translated into increased cross-line humanitarian access. To the contrary the report recorded a slight reduction in cross-line assistance in northern rural Homs.

In Eastern Ghouta the report noted an increase in interagency cross-line humanitarian convoys, including four convoys successfully reaching previously besieged areas. The four convoys, however, were directed toward areas held by Jaish al-Islam, the opposition group that agreed to the original ceasefire agreement with the government. The convoys did not deliver aid to areas held by Faylaq Ar-Rahman, which at the time was not a signatory to the agreement. The government, with the support of its partners, continued to besiege Faylaq Ar-Rahman-held areas until the opposition group agreed to join the ceasefire agreement on August 18. The report concluded that the government's refusal to allow for the delivery of aid to Faylaq Ar-Rahman-held territory until it agreed to cease all hostilities against the government was evidence that the government continued to use the denial of humanitarian aid as a weapon of war.

The COI found that the government detained many Red Crescent volunteers and medical staff on the pretext of “having supported terrorists.” According to reliable NGO reports, the government’s continued bombardment, which they characterized as indiscriminate, destroyed and damaged health-care facilities in opposition-held areas, such as the Hama Governorate and Aleppo City. In September 2016 aircraft bombed a UN convoy escorted by the Syrian Arab Red Crescent (SARC) traveling to Orem al-Kubra in rural Aleppo, killing more than 20 civilians and aid workers. A UN investigative panel concluded in December 2016 that it was highly likely the Syrian air force perpetrated the attack.

Observers and international aid organizations reported that the government specifically targeted health-care workers, medical facilities, ambulances, and patients and restricted access to medical facilities and services to civilians and prisoners, particularly in the Syrian and Russian assault on Aleppo City in 2016. Physicians for Human Rights reported that, from 2011 to July, combatants attacked 478 medical facilities, killing 830 medical personnel throughout the country. The COI also reported that government sniper fire and military assaults on medical facilities intentionally targeted sick and injured persons, including pregnant women and persons with disabilities. According to credible NGO and COI reports, the government deliberately obstructed the efforts of sick and injured persons to obtain help, and many such individuals elected not to seek medical assistance in hospitals due to fear of arrest, detention, torture, or death.

In October 2016 Russian forces in support of the government reportedly dropped cluster bombs on M10, the largest opposition-supported hospital in eastern Aleppo City. It had already suffered heavy bombardment three days earlier, in an assault that former UN secretary-general Ban Ki-moon denounced as a war crime.

The frequency and location of Russian and Syrian airstrikes on the same hospitals raised questions regarding the intended targets of the attacks and

Russian claims that they were not deliberately targeting civilian infrastructure. Between November 2016 and April, for example, observers recorded repeated airstrikes on the Kafr Zeita Specialty Hospital in northern Homs. The hospital was eventually destroyed on April 29 after being targeted in three separate incidents by Russian and Syrian strikes within a 24-hour timespan. The attacks injured one staff member.

The UN Population Fund (UNFPA) reported that infrastructure damage reduced the number of facilities and health personnel able to provide pregnant women with antenatal and postnatal care and skilled attendance at delivery.

Female victims subjected to sexual violence lacked access to health care. Violence throughout the country made accessing medical care both costly and dangerous, and the COI reported that the government and armed extremists sometimes denied pregnant women passage through checkpoints, forcing them to give birth in unsterile and often dangerous conditions, without pain medication or adequate medical treatment. In January 2016 UNFPA estimated that approximately 540,000 women in the country and in nearby refugee camps were pregnant and needed care. It also estimated that 70,000 would likely experience complications related to pregnancy or delivery. According to numerous sources, government forces deliberately denied medical care to persons in areas controlled by the opposition.

The COI noted mass displacements of communities under ISIS control, where ISIS officials warned residents to conform to ISIS standards or leave. Communities experienced discriminatory sanctions, including specialized religious taxes (“jizya”), forced religious conversions, destruction of religious sites, and expulsion of minority communities. In January 2016 the SNHR reported that YPG forces forcibly displaced tens of thousands of Arab residents in areas liberated by Kurdish forces. When the SDF, which included members of the YPG, began moving to

liberate areas from ISIS in August 2016, human rights groups, humanitarian actors, and other observers expressed concern that the forces established local governing bodies not representative of or credible with local communities and hindered the work of independent civil society and humanitarian organizations. SDF-influenced areas were relatively stable and secure in 2017.

The United Nations reported in October that nearly 270,000 persons fled Raqqa due to the SDF's campaign to defeat ISIS. Earlier, in September the United Nations reported that some humanitarian organizations operating in Raqqa continued to assert concerns about IDP screening procedures carried out by the SDF. According to the allegations, SDF screening procedures in some areas prevented freedom of movement for IDPs, in some instances requiring IDPs to obtain 'sponsorship' in order to move further into areas controlled by the Kurdish Autonomous Administration. There were allegations that the SDF used checkpoints to forcibly conscript males into service. Some analyses suggested that SDF measures to restrict movement were most likely due to the continued presence of ISIS, the high threat from IEDs, and the need to direct civilian evacuees away from combat zones.

International media reported widely on government and nongovernment forces attacking and destroying religious as well as UNESCO-listed world heritage sites. The American Academy for the Advancement of Science noted many instances of visible damage to cultural heritage sites. In Aleppo the academy found massive destruction throughout the city, especially within the World Heritage site of the ancient city. Government forces also pillaged and destroyed property, including homes, farms, and businesses of defectors and opposition figures.

Section 2.

Respect for Civil Liberties, Including:

A. FREEDOM OF SPEECH AND PRESS

While the constitution provides for freedom of speech, including for the press, the government severely restricted these rights, often terrorizing, abusing, or killing those who attempted to exercise these rights.

Freedom of Expression: The government routinely characterized expression as illegal, and individuals could not criticize the government publicly or privately without fear of reprisal. The government also stifled criticism by invoking provisions of law prohibiting acts or speech inciting sectarianism. It monitored political meetings and relied on informer networks.

Press and Media Freedom: The government continued to exercise extensive control over local print and broadcast media, and the law imposes strict punishment for reporters who do not reveal their government sources in response to government requests. A number of quasi-independent periodicals, usually owned and produced by individuals with government connections, published during the year. In 2014 the government began allowing very limited use of Kurdish in state-run universities, following a decades-long, mostly ineffective ban prohibiting all Kurdish-language publications (see section 6, National/Racial/Ethnic Minorities).

The government owned some radio and most local television companies, and the Ministry of Information closely monitored all radio and television news and entertainment programs for adherence to government policies. Despite restrictions on ownership and use, citizens widely used satellite dishes, although the government jammed some Arab networks.

Books critical of the government were illegal.

Extremist organizations such as the HTS, Jund al-Aqsa, and ISIS also posed a serious threat to press and media freedoms.

Violence and Harassment: Government forces reportedly detained, arrested, and harassed journalists and other writers for works deemed critical of the state. Harassment included attempts at intimidation, banning such individuals from the country, dismissing journalists from their positions, and ignoring requests for continued accreditation. According to reliable NGO reports, the government routinely arrested journalists who were either associated with or writing in favor of the political opposition or the FSA and instigated attacks against foreign press outlets throughout the country.

The government and ISIS routinely targeted and killed both local and foreign journalists, according to the COI. During the year the Committee to Protect Journalists (CPJ) documented the deaths of four journalists: Osama Nasr al-Zoabi, Syrian Medical Organization; al-Khateb, RT; Alaa Kraym, Qaboun Medical Center; and Mohamed Abazied, Nabd Syria Satellite Station.

According to the CPJ, the majority of reporters killed were covering politics and human rights issues. Reporters Without Borders (RSF) estimated 211 journalists and citizen journalists were killed between 2011 and March.

On August 2, a roadside bombing in the southwestern province of Daraa Osama killed Nasr al-Zoabi, a correspondent for the Syrian Media Organization . The CPJ reported al-Zoabi was on his way to report on the humanitarian effects of a government bombing campaign that took place in the Daraa Governorate in June. The car he was driving hit an improvised explosive device. The media

organization reported that the explosion also killed al-Zoabi's brother and a nephew.

The CPJ reported that six journalists remained missing in the country and seven remained imprisoned by the government. The reason for arrests was often unclear.

According to reports from media outlets operating in areas controlled by the PYD, they faced pressure and received online threats demanding they play pro-PYD songs. Reports indicated that members of the YPG detained and/or beat some opposition journalists affiliated with the Kurdish National Council.

Censorship or Content Restrictions: The government continued to control the dissemination of information strictly, including developments regarding fighting between the government and armed opposition, and prohibited most criticism of the government and discussion of sectarian problems, including religious and ethnic minority rights. The Ministries of Information and Culture censored domestic and foreign publications prior to circulation or importation and prevented circulation of content determined critical or sensitive. The government prohibited publication or distribution of any material security officials deemed threatening or embarrassing to the government. Censorship was usually greater for materials in Arabic.

Local journalists reported they engaged in extensive self-censorship on subjects such as criticism of the president and his family, the security services, or Alawite religious groups. The government required both domestic and foreign journalists who did not observe these guidelines to leave the country or targeted them for arrest, torture, or execution.

Libel/Slander Laws: Although the law prohibits imprisoning journalists for practicing their profession, the government continued to detain and arrest journalists who opposed the government. The government charged some of these individuals with libel.

National Security: The government cited laws protecting national security to restrict media distribution of material that criticized government policies or public officials.

Nongovernmental Impact: RSF reported that Syria had become the world's deadliest country for journalists. According to the SNHR, from January to September, the government and its allied militias killed 15 media activists, ISIS killed seven, Russian forces killed four, armed opposition groups killed three, and the organization known as Fateh al-Sham killed one.

INTERNET FREEDOM

The government controlled and restricted the internet and monitored email and social media accounts. According to the 2017 *Freedom on the Net Report*, the country remained one of the most dangerous and repressive environments for internet users in the world. The report noted a slight improvement in internet access in areas liberated from ISIS. Individuals and groups could not express views via the internet, including by email, without prospect of reprisal. The government applied the law to regulate internet use and prosecute users. Other key developments reported during the year included that at least 15 citizen journalists remained imprisoned by the government on charges related to their digital activism and that hackers linked to Iran increased cyberattacks against Syrian opposition groups in an effort to disrupt reporting on human rights violations.

The government often monitored internet communications, including email, and interfered with and blocked internet service, SMS messages, and two-step verification messages for password recovery or account activation. The government employed sophisticated technologies and hundreds of computer specialists for filtering and surveillance purposes such as monitoring email and social media accounts of detainees, activists, and others. The government did not attempt to restrict the security branches' monitoring and censoring of the internet. The security branches were largely responsible for restricting internet freedom and access; internet blackouts often coincided with security force attacks. The government censored websites related to the opposition, including the websites for local coordination committees as well as media outlets.

The government also restricted or prohibited internet access in areas under siege. It obstructed connectivity through its control of key infrastructure, at times shutting down the internet and mobile telephone networks entirely or at particular sites of unrest. There was generally little access to state-run internet service in besieged areas unless users could capture signals clandestinely from rooftops near government-controlled areas. Some towns in opposition-held areas had limited internet access via satellite connections. Some activists reportedly gained access independently to satellite internet or through second- and third-generation (3G) cell phone network coverage.

The government meanwhile expanded its efforts to use social media, such as Instagram, Twitter, and Facebook, to spread progovernment propaganda and manipulate online content. Government authorities routinely tortured and beat journalists to extract passwords for social media sites, and the Syrian Electronic Army (SEA), a group of progovernment computer hackers, frequently launched cyberattacks on websites to disable them and post progovernment material. In addition to promoting hacking and conducting surveillance, the government and

groups that it supported, such as the SEA, reportedly planted malware to target human rights activists, opposition members, and journalists. Local human rights groups blamed government personnel for instances in which malware infected activists' computers. Arbitrary arrests raised fears that authorities could arrest internet users at any time for online activities perceived to threaten the government's control, such as posting on a blog, tweeting, commenting on Facebook, sharing a photograph, or uploading a video.

Observers also accused the SEA of slowing internet access to force self-censorship on government critics and diverting email traffic to government servers for surveillance.

According to the International Telecommunications Union, 31.9 percent of individuals used the internet and 43.6 percent of households had internet access at home in 2016.

ACADEMIC FREEDOM AND CULTURAL EVENTS

The government restricted academic freedom and cultural events. Authorities generally did not permit teachers to express ideas contrary to government policy. The Ministry of Culture restricted and banned the screening of certain films.

ISIS and the HTS sought to restrict academic freedom severely and to curtail cultural events considered un-Islamic. Media sources reported that schools in ISIS-controlled Raqqa Governorate banned several academic subjects, including chemistry and philosophy.

During the conflict students, particularly those residing in opposition-held areas, continued to face challenges in taking nationwide exams. The government, however, allowed 360 students from Moadimiyeh and 68 students from Madaya to

travel to government-held areas to take exams in May 2016. Moreover, areas previously held by ISIS that SDF and Coalition forces liberated reopened local schools. Children in the city of Tabqa, for example, returned to school in September in buildings ISIS fighters previously used. Many of the school buildings required extensive repair and many administrators required assistance to obtain basic supplies for learning.

Authorities in some Kurdish-controlled areas reportedly forced schools to close if they refused to use an officially sanctioned Kurdish curriculum. Media reports indicated that the SDF proposed teaching Kurdish in Arab-majority Raqqa.

B. FREEDOM OF PEACEFUL ASSEMBLY AND ASSOCIATION

FREEDOM OF PEACEFUL ASSEMBLY

The constitution provides for the right of peaceful assembly, but the government restricted this right. Even after the 2011 repeal of the emergency law, a subsequent 2011 presidential decree was issued granting the government broad powers over freedom of assembly.

The Ministry of Interior requires permission for demonstrations or any public gathering of more than three persons. As a rule the ministry authorized only demonstrations by the government, affiliated groups, or the Baath Party, orchestrating them on numerous occasions. The government continued to use excessive force against peaceful demonstrators.

The COI reported that residents who previously resided in ISIS-controlled Raqqa noted severe restrictions on assembly (prior to the liberation of Raqqa from ISIS). The HTS's consolidation of power in Idlib threatened the ability of local actors and community leaders to assemble outside the authority of the HTS.

Syrians for Truth and Justice reported in November that some armed opposition groups in eastern Ghouta repressed local demonstrations calling for a cessation of fighting and the removal of checkpoints. The repression reportedly included the use of live bullets and stone throwing, which injured several demonstrators.

According to allegations by Kurdish activists and press reporting, the PYD and the YPG suppressed freedom of assembly and severely limited freedom of speech in areas under their control by attacking media and targeting political opponents for arrest.

FREEDOM OF ASSOCIATION

The constitution permits private associations but grants the government the right to limit their activities. The government restricted freedom of association, requiring prior registration and approval for private associations and restricting the activities of associations and their members. The executive boards of professional associations were not independent of the government.

The government often denied requests for registration or failed to act on them, reportedly on political grounds. None of the local human rights organizations operated with a license, but many functioned under organizations that had requisite government registration. The government continued to block the multi-year effort by journalists to form a countrywide media association. The government selectively enforced the 2011 decree allowing the establishment of independent political parties, allowing only progovernment groups to form official parties (see section 3). According to local human rights groups, opposition activists declined to organize parties, fearing the government would use party lists to target opposition members.

Under laws that criminalize membership and activity in illegal organizations as determined by the government, security forces detained hundreds of persons linked to local human rights groups and prodemocracy student groups. The government also searched these individuals' personal and social media contacts for further potential targets.

According to media reports and reports from former residents of ISIS-controlled areas, ISIS did not permit the existence of associations that opposed the structures or policies of the "caliphate."

C. FREEDOM OF RELIGION

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

D. FREEDOM OF MOVEMENT, INTERNALLY DISPLACED PERSONS, PROTECTION OF REFUGEES, AND STATELESS PERSONS

The constitution provides for freedom of movement "within the territories of the state unless restricted by a judicial decision or by the implementation of laws." The government, ISIS, and other armed groups, however, restricted internal movement and travel and instituted security checkpoints to monitor such travel throughout the regions under their respective control. Government sieges in Homs, Damascus, rural Damascus, Deir al-Zour, and Idlib Governorates resulted in documented cases of death, starvation, and severe malnutrition (see section 1.g.). In areas under its control, ISIS restricted the movement of government supporters or assumed supporters, especially the Alawi and Shia populations. Other opponents of the government also restricted the movement of such individuals, but to a lesser extent.

The COI report issued on September 6 documented the government's use of starvation through the implementation of siege warfare. The report stated that more than 600,000 men, women, and children remained trapped in besieged locations, and often in harsh conditions. Sieges executed by the government and its partners entailed routine denial of delivery of food, medicine, medical equipment, and other essential supplies to besieged enclaves. The government compounded these abuses with aerial targeting of civilian infrastructure, including hospitals.

In November in a report called, "We Leave or We Die: Forced Displacement Under Syria's 'Reconciliation' Agreements," AI reported that the government and its allies offered "reconciliation" agreements to communities "after prolonged sieges and bombardment and typically result not only in the evacuation of members of nonstate armed groups but also in the mass displacement of civilians." In Daraya, according to the report, government forces blocked or restricted access to basic necessities to such an extent that one former resident described life in the area as living in "Stone Age-like conditions."

Abuse of Migrants, Refugees, and Stateless Persons: Both government and opposition forces reportedly besieged, shelled, and otherwise made inaccessible some Palestinian refugee camps, neighborhoods, and sites, which resulted in severe malnutrition, lack of access to medical care and humanitarian assistance, and civilian deaths.

In-country Movement: In government-besieged cities throughout the country, government forces blocked humanitarian access, leading to severe malnutrition, lack of access to medical care, and death. The violence, coupled with significant cultural pressure, severely restricted the movement of women in many areas. Additionally, the law allows certain male relatives to place travel bans on women.

The government inconsistently cooperated with UNHCR and other humanitarian organizations in assisting IDPs, refugees, and asylum seekers. The government provided some cooperation to the United Nations Relief and Works Agency for Palestinian Refugees in the Near East (UNRWA).

The government relied on security checkpoints to monitor and limit movement and expanded them into civilian areas. The government also barred foreign diplomats from visiting most parts of the country and rarely granted them permission to travel outside Damascus. The consistently high level and unpredictability of violence severely restricted movement throughout the country.

ISIS and opposition groups also controlled movement, including with checkpoints.

Government forces reportedly used snipers to prevent protests, enforce curfews, target opposition forces, and in some cases prevent civilians from fleeing besieged towns. According to the COI, the drive through long desert detour routes exposed passengers and drivers to arbitrary arrest, unlawful search and seizure of property, demands for bribes, and detention and execution at checkpoints administered by ISIS, the government, and other armed actors.

ISIS reportedly did not permit female passengers to traverse territory it controlled unless accompanied by a close male relative.

Foreign Travel: While citizens have the right to travel internationally, the government denied passports and other vital documents based on the applicant's political views, association with opposition groups, or ties to geographic areas where the opposition dominated. The government also imposed exit visa requirements and routinely closed the Damascus airport and border crossings, claiming the closures were due to violence or threats of violence. Additionally, the government often banned travel by human rights or civil society activists, their

families, and affiliates. Many citizens reportedly learned of the ban against their travel only when authorities prevented them from departing the country. The government reportedly applied travel bans without explanation or explicit duration, including in cases when individuals sought to travel for health reasons. The government comprehensively banned international travel of opposition members, often targeting any such individual who attempted to travel. Local media and human rights groups repeatedly stated that opposition activists and their families hesitated to leave the country, fearing attacks at airports and border crossings. In June 2016 Turkish border guards killed 11 Syrian refugees when they attempted to flee the country.

There were reports ISIS destroyed Syrian passports and legal records and produced its own passports, not recognized by any country or entity. These policies disproportionately affected children, because many left the country before obtaining a passport or identification card. Additionally, Syrians born abroad to parents who fled the conflict and remained in refugee camps generally did not have access to Syrian citizenship documents. In 2015 the government began allowing Syrians living outside of the country, whose passports expired, to renew their passports at consulates. Many who fled as refugees, however, feared reporting to the government against which they may have protested or feared the government could direct reprisals against family members still in the country.

Women over age 18 have the legal right to travel without the permission of male relatives, but a husband may file a request with the Interior Ministry to prohibit his wife from departing the country.

ISIS explicitly prohibited women from foreign travel.

INTERNALLY DISPLACED PERSONS (IDPS)

The government largely did not facilitate humanitarian assistance for IDPs and provided inconsistent protection. During the year violence continued to be the primary reason for citizens to leave the country, with much of the violence attributed to government and Russian aerial attacks. Years of conflict repeatedly displaced persons; each displacement depleted family assets and eroded coping mechanisms.

By the last quarter of the year, the United Nations estimated there were more than 6.3 million IDPs in the country. The government generally did not provide sustainable access for services to the IDP population and did not offer IDPs assistance or protection. UN humanitarian officials reported that most IDPs sought shelter with host communities or in collective centers, abandoned buildings, or informal camps.

In September the United Nations reported that some humanitarian organizations operating in Raqqa continued to assert concerns about IDP screening procedures carried out by the SDF. (see section 1.g.).

The SARC functioned as the main partner for international humanitarian organizations working inside the country to provide humanitarian assistance in both government- and opposition-controlled areas. Access difficulties—including those imposed by the government, ISIS, and opposition groups—hindered the delivery of aid to persons in need. NGOs operating from Damascus faced extensive bureaucratic obstruction when attempting to provide relief to populations in need. The SARC and UN agencies sought to increase the flow of assistance to opposition-held areas to meet growing humanitarian needs. The government routinely disrupted the supply of humanitarian aid to rebel-held areas, particularly medical assistance (see section 1.g.).

The humanitarian response to the country was one of the largest in the world, coordinated through a complex bureaucratic structure. The crisis inside the country continued to meet the UN criteria for a Level 3 response—the global humanitarian system’s classification for response to the most severe, large-scale humanitarian crises. Cross-border operations from Turkey and Jordan provided humanitarian assistance for Syrians. Additional assistance came through cross-line operations originating from Damascus. Since the International Syria Support Group’s Humanitarian Task Force began advocating for expanded access in February 2016, the United Nations assisted persons in 17 besieged areas. Assistance reached many besieged and hard-to-reach towns several times. Despite these efforts, however, the Assad government continued to hinder UN access, and many communities continued to suffer and surrender to the government’s tactics.

PROTECTION OF REFUGEES

Access to Asylum: The law provides for the granting of asylum or refugee status, and the government has established a system for providing protection to refugees. UNHCR and UNRWA were able to maintain limited protection areas for refugees and asylum seekers, although violence hampered access to vulnerable populations. In coordination with both local and international NGOs, the United Nations continued to provide such individuals essential services and assistance.

UNHCR estimated that at least 95,000 persons, mainly Yezidi Iraqis, entered the country following ISIS attacks on Sinjar District in Iraq, beginning in 2014. Many initially fled to Mount Sinjar but managed to evacuate the mountain with the assistance of military strikes led by the Western coalition and support from Syrian Kurdish groups, which transported many Yezidis into the country. The majority of these persons returned to Iraq through the Iraqi Kurdistan Region; however, as of

early December, UNHCR had received an estimated 28,000 Iraqis in Syria's al-Hasakah Governorate.

Employment: The law does not explicitly grant refugees, except for Palestinians, the right to work. While the government rarely granted non-Palestinian refugees a work permit, many refugees found work in the informal sector as guards, construction workers, street vendors, and in other manual jobs.

Access to Basic Services: The law allows for the issuance of identity cards to Palestinian refugees and the same access to basic services provided to citizens. The government also allowed Iraqi refugees access to publicly available services, such as health care and education, but residency permits were available only to those refugees who entered Syria legally and possessed a valid passport, which did not include all refugees. The lack of access to residency permits issued by authorities exposed refugees to risks of harassment and exploitation and severely affected their access to public services. The approximately 54,000 non-Palestinian refugees in the country faced growing protection risks, multiple displacements, tightened security procedures at checkpoints, and difficulty obtaining required residency permits, all of which resulted in restrictions on their freedom of movement. UNHCR reported a rise in sexual- and gender-based violence and child protection concerns among refugees, including child labor, school dropouts, and early marriages.

STATELESS PERSONS

Approximately 190,000 Kurds in the country are not entitled to Syrian nationality under the law. The government considers the Kurds to be foreigners, which denies them access to services. Following the 1962 census, approximately 150,000 Kurds lost their citizenship. A legislative decree had ordained the single-day

census in 1962, and the government executed it unannounced with regard to the inhabitants of al-Hasakah Governorate. Anyone not registered for any reason or without all required paperwork became “foreign” from that day onward. In a similar fashion, authorities recorded anyone who refused to participate as “undocumented.” Because of this loss of citizenship, these Kurds and their descendants lacked identity cards and could not access government services, including health care and education. They also faced social and economic discrimination. Stateless Kurds do not have the right to inherit or bequeath assets, and their lack of citizenship or identity documents restricted their travel to and from the country.

In 2011 President Assad decreed that stateless Kurds in al-Hasakah Governorate, who were registered as “foreigners,” could apply for citizenship. UNHCR reported that approximately 40,000 of these remained unable to obtain citizenship. Likewise, the decree did not extend to the approximately 160,000 “unregistered” stateless Kurds. The change from 150,000 to 160,000 reflected an approximate increase in population since the 1962 census.

Children derive citizenship solely from their father. Because women cannot confer nationality on their children, an unknown number of children whose fathers were missing or deceased due to the continuing conflict were at risk of statelessness. Mothers could not pass citizenship to children born outside the country, including in neighboring countries operating refugee camps.

Section 3.

Freedom to Participate in the Political Process

Although the constitution provides the ability for citizens to choose their government periodically through free and fair elections conducted by secret ballot and based on universal and equal suffrage, citizens were not able to exercise that ability. Outcomes did not reflect the unimpeded or uncoerced will of the electorate because of the underlying circumstances of elections.

Elections and Political Participation

Recent Elections: In April 2016 the country held geographically limited parliamentary elections, the results of which citizens living outside government control rejected. In 2014 Bashar Assad, Hassan al-Nouri, and Maher Hajjar registered as candidates for the 2014 presidential election administered in disparate areas of the country, and the majority of citizens could not access polling places because of violence or displacement. The process, in which Assad received 88.7 percent of the vote, was neither free nor fair by international standards. Voters faced intimidation by security elements, and the government forcibly transported state employees in Damascus to polling centers, according to observers and media. Media reports described low overall voter turnout, even among those living in relatively stable areas with access to polling stations. Authorities allowed only persons in government-controlled territory, certain refugee areas, and refugees who left the country after obtaining official permission to vote. According to a 2014 report of Human Rights First, Hizballah threatened Syrian refugees if they did not vote for Assad. Security forces increased security measures in Damascus and surrounding areas under government control to

maximize voter turnout. Nonetheless, violence continued throughout the country, and some armed opposition groups fired missiles at government-controlled areas during the voting period.

On September 22, Kurdish authorities held the first of three planned elections for leaders of regional “communes” in an effort to establish new governing institutions to augment regional autonomy. According to reports the September elections were for members of local communes that oversee political, economic, and social issues in their neighborhoods.

Political Parties and Political Participation: The constitution provides that the Baath Party is the ruling party and assures that it has a majority in all government and popular associations, such as workers’ and women’s groups. The Baath-led National Progressive Front dominated the 250-member People’s Council, holding 200 of the 250 parliament seats following the April 2016 election. The Baath Party and nine smaller satellite political parties constituted the coalition National Progressive Front. A 2011 decree allows establishment of additional political parties, although it forbids those based on religion, tribal affiliation, or regional interests.

Membership in the Baath Party or close familial relationships with a prominent party member or powerful government official assisted in economic, social, and educational advancement. Party or government connections made it easier to gain admission to better schools, access lucrative employment, and achieve greater advancement and power within the government, military, and security services. The government reserved certain prominent positions, such as provincial governorships, solely for Baath Party members.

The government showed little tolerance for other political parties. The government harassed parties such as the Communist Union Movement, Communist Action

Party, and Arab Social Union, and it arrested their members. Police arrested members of Islamist parties. Reliable data on illegal political parties was unavailable.

Participation of Women and Minorities: No laws limit participation of women and/or members of minorities in the political process, and they did participate. Women and minorities generally participated in the political system without formal restriction, although significant cultural and social barriers largely excluded women from decision-making positions. The government formed after the 2014 election included three female members: Vice President Najah al-Attar, Minister of State for Environmental Affairs Nazira Serkis, and Minister of Social Affairs Rima al-Qadiri. In 2016, 13 percent of members of parliament were women. There were Christian, Druze, and Kurdish members in parliament. Alawites, the ruling religious minority, held greater political power than other minorities in the cabinet as well as greater power than the majority Sunni sect in the cabinet.

Section 4.

Corruption and Lack of Transparency in Government

Although the law provides criminal penalties for corruption by officials, the government did not implement the law effectively, and officials frequently engaged in corrupt practices with impunity. Corruption continued to be a pervasive problem in police forces, security services, migration management agencies, and throughout the government.

Corruption: Due to the lack of free press and of opposition access to instruments of government and media, there was almost no detailed information about corruption, except petty corruption. Human rights lawyers and family members of

detainees stated that government officials in courts and prisons solicited bribes for favorable decisions and provision of basic services.

Financial Disclosure: There are no public financial disclosure laws for public officials.

Section 5.

Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The government restricted attempts to investigate alleged human rights violations and actively refused to cooperate with any independent attempts to investigate alleged violations. The government did not grant permission for the formation of any domestic human rights organizations. Nevertheless, hundreds of such groups operated illegally in the country. There were reports the government harassed domestic human rights activists by subjecting them to regular surveillance and travel bans. The government normally responded to queries from human rights organizations and foreign embassies regarding specific cases by reporting that the case was still under investigation, that the prisoner in question had violated national security laws, or, if the case was in criminal court, that the executive branch could not interfere with the allegedly independent judiciary. The government reportedly sought out members of domestic human rights organizations for property seizures, harassment, detention, arrest, torture, and execution.

The government was highly suspicious of international human rights NGOs and did not allow them into the country. Reports and media interviews with government officials indicated the government denied committing any human rights violations. It denied other organizations access to several locations where government agents launched assaults on antigovernment protesters or allegedly held prisoners detained on political grounds. According to reliable reports, the government also actively restricted the activities of humanitarian aid organizations, especially along supply routes and access points near opposition-controlled areas (see section 1.g.).

The United Nations or Other International Bodies: The government continued to deny access to the UN Commission of Inquiry, mandated by the UN Human Rights Council to document and report on human rights violations and abuses in the country. It did not cooperate fully with numerous UN bodies, resulting in restrictions on access for humanitarian organizations, especially to opposition-controlled areas.

Section 6.

Discrimination, Societal Abuses, and Trafficking in Persons

Women

Rape and Domestic Violence: Rape is a felony, subject to punishment by at least 15 years in prison, but the government did not enforce the law. The law further stipulates that if the rapist marries the victim, the rapist receives no punishment. The victim's family sometimes agreed to this arrangement to avoid the social stigma attached to rape. There are no laws against spousal rape. Observers of the refugee crisis reported women, men, and community leaders consistently identified sexual violence as a primary reason their families fled the country. The

COI reported rape was widespread, and government and progovernment forces used rape to terrorize and punish women, men, and children perceived as associated with the opposition (see section 1.g. for additional information, including on abuses committed by extremist groups). The COI concluded that underreporting and delayed reporting of sexual violence was endemic, rendering an assessment of its magnitude difficult. Reports by the SNHR, HRW, and other NGOs included interviews with female former prisoners, who reported that rape by guards and security forces was common in detention facilities.

The law does not specifically prohibit domestic violence, and violence against women was extensive and generally went unpunished. Victims did not report the vast majority of domestic violence and sexual assault cases. Security forces consistently treated violence against women as a social rather than a criminal matter. Observers reported that when some abused women tried to file a police report, police did not investigate their reports thoroughly, if at all, and that in other cases police officers responded by abusing the women, including by sexual harassment, verbal abuse, hair pulling, and slapping.

In previous years several domestic violence centers operated in Damascus, and the government licensed and affiliated them with the Ministry of Social Affairs and Labor. Local NGOs reported, however, that many centers no longer operated due to the conflict. There were no known government-run services for women outside Damascus. According to local human rights organizations, local coordination committees and other opposition-related groups offered programming specifically for protection of women; NGOs did not integrate these programs throughout the country, and none reported reliable funding.

Other Harmful Traditional Practices: The law permits judges to reduce legal penalties for murder and assault if the defendant asserts an “honor” defense, which often occurred. The government kept no official statistics on use of this

defense in murder and assault cases. There were no officially reported honor killings during the year, but local human rights groups asserted the practice continued, reportedly at previous levels, despite or even because of the continuing violence. NGOs working with refugees reported families killed some rape victims inside the country, including those raped by government forces, for reasons of honor. NGOs also reported the conflict led to a significant rise in honor killings due to the pervasive use of rape by government forces and sexual slavery and exploitation by ISIS.

Sexual Harassment: The law prohibits discrimination in employment on the basis of gender but does not explicitly prohibit sexual harassment.

Coercion in Population Control: There were reports that ISIS transferred some Yezidi women captives from Iraq to Syria (see section 1.g.). There was limited information available regarding their treatment in 2017; however, previous reports from Iraq found that ISIS forced Yezidi women whom they had impregnated to have abortions. There were no reports of involuntary sterilization. Estimates on maternal mortality and contraceptive prevalence are available at:

www.who.int/reproductivehealth/publications/monitoring/maternal-mortality-2015/en/.

Discrimination: Although the constitution provides for equality between men and women and the “right of every citizen to earn his wage according to the nature and yield of the work,” the law does not explicitly stipulate equal pay for equal work. Moreover, a number of sections of family and criminal law do not treat men and women equally. Before the conflict began, 16 percent of women participated in the formal labor force, compared with 72 percent of men. Female employment participation decreased as violence and insecurity increased.

The Commission for Family Affairs, Ministry of Justice, and Ministry of Social Affairs and Labor shared responsibility for attempting to accord equal legal rights

to women. Governmental involvement in civil rights claims, including cases against sexual discrimination, was stagnant, and most claims went unanswered.

Personal status, retirement, citizenship, and social security laws discriminate against women. By law if a man and a woman separately commit the same criminal act of adultery, the woman's punishment is double that of the man's. The law generally permits women to initiate divorce proceedings against their spouses. For Muslims personal status law treats men and women differently. Some personal status laws mirror Islamic law regardless of the religion of those involved in the case. The law does not entitle a divorced woman to alimony in some cases, such as if she gave up her right to alimony to persuade her husband to agree to the divorce. Additionally, under the law a divorced mother loses the right to guardianship and physical custody of her sons when they reach age 13 and of her daughters at age 15, when guardianship transfers to the paternal side of the family.

The government's interpretation of Islamic law is the basis of inheritance law for all citizens except Christians. Accordingly, courts usually granted Muslim women half of the inheritance share of male heirs. In all communities male heirs must provide financial support to female relatives who inherit less. If they do not, women have the right to sue.

Women participated in public life and in most professions, including the armed forces, although violence in many regions reduced women's access to the public sphere. Women and men have equal legal rights in owning or managing land or other property, although cultural and religious norms impeded women's rights, especially in rural areas. Various sources observed that women constituted a minority of lawyers, university professors, and other professions.

Some opposition groups and extremist elements reportedly banned women from teaching and girls from attending school, particularly in ISIS-controlled areas of Deir al-Zour Governorate. According to activists from Raqqa Governorate, ISIS segregated classrooms and removed women from the local councils in territories it controlled.

According to several groups, including HRW, extremist armed groups placed discriminatory restrictions on women and girls in Aleppo, al-Hasakah, Idlib, and Raqqa Governorates.

In areas under its control, ISIS published a “Civilization Document” with 16 points that a woman must follow or face the death penalty. They included staying at home and not leaving it without an immediate male relative (mahram); wearing a wide cloak, full face veil, and headscarf; closing hair salons; not sitting on chairs in public; and not seeing male doctors. ISIS established the “al-Khanssaa” brigade, an all-female police force in the city of Raqqa, composed mostly of noncitizen women who enforced these regulations, sometimes violently, among women.

According to media reports, the SDF trained 210 women to participate in the battle against ISIS in Raqqa. This was in addition to the 8,000-strong Women’s Protection Units, widely reported on in the media, and originally formed with the aim of defending the Kurdish population from regime oppression, but eventually transitioning to broader anti-ISIS efforts. Volunteers joined this force from Syria and also from Iraq, Turkey, Iran, and other points of origin.

Children

Birth Registration: Children derive citizenship solely from their father. In large areas of the country where civil registries were not functioning, authorities did not register births. The government did not register the births of Kurdish noncitizen residents, including stateless Kurds (see section 2.d., Stateless Persons). Failure to register resulted in deprivation of services, such as diplomas for high school-level studies, access to universities, access to formal employment, and civil documentation and protection.

Education: The government provided free public education to citizen children from primary school through university. Education is compulsory for all children between the ages of six and 12. Noncitizen children could also attend public schools at no cost but required permission from the Ministry of Education.

The conflict increasingly hampered the ability of children to attend school.

According to several reports, ISIS segregated classrooms (including teachers) by gender, dismissed students for dress code violations, imposed its curriculum on teachers, and closed private schools and educational centers. According to local sources, ISIS forces prevented young women in Raqqa Governorate from traveling to complete their university exams. ISIS also banned several basic education subjects, such as chemistry.

While Palestinians and other noncitizens, including stateless Kurds, could generally send their children to school and universities, stateless Kurds were ineligible to receive a degree documenting their academic achievement.

Child Abuse: The country lacked a formal law protecting children from abuse. There were reports of government forces sexually assaulting, torturing, detaining,

and killing children (see sections 1.a., 1.b., 1.c., and 1.g.). HRW reported that government teachers and principals interrogated and, in some cases, beat students who expressed antigovernment sentiments. Additionally, the United Nations, HRW, and local news sources reported that government forces used children as human shields.

ISIS subjected children to extremely harsh punishment, including execution (see section 1.g.).

Early and Forced Marriage: The legal age for marriage is 18 for men and 17 for women. A boy as young as 15 or a girl as young as 13 may marry if a judge deems both parties willing and “physically mature,” and if the fathers or grandfathers of both parties consent.

ISIS systematically abducted and sexually exploited Yezidi girls in Iraq and transported them to Syria for systematic rape and forced marriage (see section 1.g. and section 6, Women).

Sexual Exploitation of Children: The law stipulates penalties for those found guilty of certain forms of child abuse associated with trafficking crimes, including kidnapping and forced prostitution, both of which carry a penalty of up to three years in prison. The law considers child pornography a trafficking crime, but the punishment for child pornography was set at the local level with “appropriate penalties.” It was also unclear if there had been any prosecutions for child pornography or if authorities enforced the law.

The age of sexual consent by law is 15. Premarital sex is illegal, but observers reported authorities did not enforce the law. Rape of a child under the age of 15 is punishable by up to 21 years in prison. There were no reports of government prosecution of child rape cases.

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See the Department of State's *Annual Report on International Parental Child Abduction* at travel.state.gov/content/childabduction/en/legal/compliance.html.

Anti-Semitism

NGOs estimated fewer than 20 Jews remained in the country. According to media and the Syrian American Council, in 2014 government forces destroyed the Eliyahu Hanabi synagogue, the country's oldest, in an artillery attack on Jobar, a rebel-held neighborhood in Damascus. Government and opposition forces accused each other of burning and looting the Jobar synagogue.

The national school curriculum did not include materials on tolerance education or the Holocaust.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

The law prohibits discrimination against persons with disabilities and seeks to integrate them into the public-sector workforce, but the government did not effectively enforce these provisions. The law protects persons with disabilities from discrimination in education, access to health care, and provision of other state services, and it reserves 4 percent of government-sector jobs and 2 percent of

private-sector jobs for persons with disabilities. Private businesses are eligible for tax exemptions after hiring persons with disabilities.

Authorities did not fully document the number of persons with disabilities, but the conflict negatively affected persons with disabilities and increased their numbers through injuries.

The government did not effectively work to provide access for persons with disabilities to buildings, communication, or information.

The Ministry of Social Affairs and Labor is responsible for assisting persons with disabilities and worked through dedicated charities and organizations to provide assistance.

National/Racial/Ethnic Minorities

As in previous years, the government actively restricted national and ethnic minorities from conducting traditional, religious, and cultural activities. The Kurdish population, citizens and noncitizens, faced official and societal discrimination and repression as well as government-sponsored violence. Government forces arrested, detained, and reportedly tortured numerous Kurdish activists during the year.

The government continued to limit the use and teaching of the Kurdish language. It also restricted publication of books and other materials in Kurdish, Kurdish cultural expression, and at times the celebration of Kurdish festivals. Authorities continued enforcement of a 2009 government rule requiring that at least 60 percent of the words on signs in shops and restaurants be in Arabic (see section 2.a.).

The Alawite community, to which Bashar Assad belongs, enjoyed privileged status throughout the government and dominated the state security apparatus and military leadership. Nevertheless, the government reportedly also targeted Alawite opposition activists for arbitrary arrest, torture, detention, and killing. Extremist opposition groups targeted Alawite communities on several occasions for their perceived progovernment stance.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

The law prohibits homosexual relations, defined as “carnal relations against the order of nature,” and provides for at least three years’ imprisonment for violations. The law specifically criminalizes any sexual act that is “contrary to nature.” In previous years police used this charge to prosecute lesbian, gay, bisexual, transgender, and intersex (LGBTI) individuals. There were no reports of prosecutions under the law during the year, although NGO reports indicated the government arrested dozens of gay men and lesbians over the past several years on charges such as abusing social values; selling, buying, or consuming illegal drugs; and organizing and promoting “obscene” parties.

Although there were no known domestic NGOs focused on LGBTI matters, there were several online networking communities, including an online LGBTI-oriented magazine. Human rights activists reported there was overt societal discrimination based on sexual orientation and gender identity in all aspects of society. There were also reports of extremist groups threatening LGBTI activists.

Local media reported numerous instances in which security forces used accusations of homosexuality as a pretext to detain, arrest, and torture civilians. The frequency of such instances was difficult to determine, since police rarely

reported their rationale for arrests. According to Outright International, in May 2016 ISIS's media office issued a "photo report about the imposition of sharia punishment" on those suspected of belonging to the LGBTI community. The photographs included images of a boy pushed from the top of a building.

HIV and AIDS Social Stigma

There were no reports of violence or discrimination against persons with HIV/AIDS, but human rights activists believed such cases were widely underreported. The government, World Bank, and World Health Organization did not maintain data on the number of persons infected with HIV/AIDS living in the country. Observers expected the HIV/AIDS rate of infection to rise with increased sexual violence in the country.

Section 7.

Worker Rights

A. FREEDOM OF ASSOCIATION AND THE RIGHT TO COLLECTIVE BARGAINING

While the law provides for the right to form and join unions, conduct legal labor strikes, and bargain collectively, there were excessive restrictions on these rights. The law prohibits antiunion discrimination but also allows employers to fire workers at will.

The law requires all unions to belong to the government-affiliated General Federation of Trade Unions (GFTU). Restrictions on freedom of association also included fines and prison sentences for illegal strikes. The government could impose forced labor as punishment on individuals who caused "prejudice to the general production plan." The law prohibits strikes involving more than 20 workers

in certain sectors, including transportation and telecommunication, or strike actions resembling public demonstrations.

The law requires that government representatives be part of the bargaining process in the public sector, and the Ministry of Social Affairs and Labor could object to, and refuse to register, any agreements concluded. The law and relevant labor protections do not apply to workers covered under civil service provisions, under which employees neither have nor are considered to need collective bargaining rights. The law does not apply to foreign domestic servants, agricultural workers, NGO employees, or informal-sector workers. There are no legal protections for self-employed workers, although they comprised a significant proportion of the total workforce. Foreign workers may join the syndicate representing their profession but may not run for elected positions, with the exception of Palestinians, who may serve as elected officials in unions.

The government did not enforce applicable laws effectively or make any serious attempt to do so during the year. Penalties were not sufficient to deter violations.

The Baath Party dominated the GFTU, and Baath Party doctrine stipulates that its quasi-official constituent unions protect worker rights. The GFTU president was a senior member of the Baath Party, and he and his deputy could attend cabinet meetings on economic affairs. In previous years the GFTU controlled most aspects of union activity, including which sectors or industries could have unions. It also had the power to disband union governing bodies. Union elections were generally free of direct GFTU interference, but successful campaigns usually required membership in the Baath Party. Because of the GFTU's close ties to the government, the right to bargain collectively did not exist in practical terms. Although the law provides for collective bargaining in the private sector, past government repression dissuaded most workers from exercising this right.

There was little information available on employer practices with regard to antiunion discrimination. Unrest and economic decline during the year caused many workers to lose their private-sector jobs, giving employers the stronger hand in disputes.

B. PROHIBITION OF FORCED OR COMPULSORY LABOR

The law does not prohibit all forms of forced or compulsory labor, and such practices existed. For example, authorities may sentence convicted prisoners to hard labor, although according to the International Labor Organization, authorities seldom enforced such a sentence. There was little information available on government efforts to enforce relevant laws during the year.

The YPG reportedly captured unknown numbers of men and women between the ages of 18 and 30 at checkpoints and from residences in Kurdish areas and compelled them to fight for the YPG. Extremist fighters, including ISIS, reportedly forced, coerced, or fraudulently recruited some foreigners, including migrants from Central Asia, children, and western women to join them.

Syria was a destination and transit country for women and children trafficked for commercial sexual exploitation and forced labor. The government did not fully comply with the minimum standards for the elimination of trafficking and was not making significant efforts to do so.

Following the 2015 ISIS incursion into Assyrian villages in al-Hasakah, ISIS captured approximately 230 Assyrian Christians, forcing several women into sexual slavery. All appeared to have been freed as of February. Starting in 2014 ISIS also abducted thousands of Yezidi women and girls from Iraq and forcibly brought them to Syria, where they experienced systematic rape, forced marriage, domestic servitude, and sexual violence. According to the COI, ISIS restricted medical

professionals' work and in some cases forced doctors to stop working in public hospitals or private clinics and instead work for ISIS to treat its combatants.

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

C. PROHIBITION OF CHILD LABOR AND MINIMUM AGE FOR EMPLOYMENT

The law provides for the protection of children from exploitation in the workplace. The minimum age for most types of nonagricultural labor is 15 or the completion of elementary schooling, whichever occurs first, and the minimum age for employment in industries with heavy work is 17. Parental permission is required for children younger than 16 to work. Children under 18 may work no more than six hours a day and may not work overtime or during night shifts, weekends, or on official holidays. The law specifies that authorities should apply "appropriate penalties" to violators. Restrictions on child labor do not apply to those who work in family businesses and do not receive a salary.

There was little publicly available information on enforcement of child labor law. The government generally did not make significant efforts to prevent or eliminate child labor. Independent information and audits regarding government enforcement were not available.

Child labor occurred in the country in both informal sectors, such as begging, domestic work, and agriculture, as well as in positions related to the conflict, such as lookouts, spies, and informants. Conflict-related work subjected children to significant dangers of retaliation and violence. Prior to the start of protests in 2011, there was progress in removing children from bonded agricultural labor organizations and street begging schemes, although the outbreak of armed conflict halted that progress.

The government continued to recruit and use child soldiers forcibly; it also failed to protect and prevent children from recruitment and use by government, armed opposition forces, and designated organizations such as ISIS.

Organized begging rings particularly continued to subject children displaced within the country to forced labor. According to UNICEF six million children were in urgent need of life-saving assistance. UNICEF also reported that fighting destroyed, damaged, or occupied one in every four schools, and more than two million children were out of school. Save the Children and UNICEF reported that more than 75 percent of the country's households had children working rather than attending school since the armed conflict began.

D. DISCRIMINATION WITH RESPECT TO EMPLOYMENT AND OCCUPATION

The constitution does not address discrimination based on sexual orientation, age, or HIV-positive status. Since the government legally prohibits homosexuality (see section 6, Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity), many persons faced discrimination due to their sexual orientation. Discrimination against persons with disabilities occurred in hiring and access to worksites. Discrimination in employment and occupation occurred with respect to certain ethnic groups (see section 6, National/Racial/Ethnic Minorities).

E. ACCEPTABLE CONDITIONS OF WORK

The law divides the public-sector monthly minimum wage into five levels based on job type or level of education, almost all of which fell below the World Bank's poverty indicator of \$1.90 per day. Benefits included compensation for meals,

uniforms, and transportation. Most public-sector employees relied on bribery to supplement their income. Private-sector companies usually paid much higher wages, with lower-end wage rates semiofficially set by the government and employer organizations. Many workers in the public and private sectors took additional manual jobs or relied on their extended families to support them.

The public-sector workweek was 35 hours, and the standard private-sector workweek was 40 hours, excluding meals and rest breaks. Hours of work could increase or decrease, based on the industry and associated health hazards. The law provides for at least one meal or rest break totaling no less than one hour per day. Employers must schedule hours of work and rest such that workers do not work more than five consecutive hours or 10 hours per day in total. Employers must provide premium pay for overtime work.

The government set occupational safety and health standards. The law includes provisions mandating that employers take appropriate precautions to protect workers from hazards inherent to the nature of work. The law did not protect workers who chose to remove themselves from situations that endangered their health or safety from losing their employment.

The Ministry of Social Affairs and Labor is responsible for enforcing the minimum wage and other regulations pertaining to acceptable conditions of work. The Ministries of Health and of Social Affairs and Labor designated officials to inspect worksites for compliance with health and safety standards. Workers could lodge complaints about health and safety conditions with special committees established to adjudicate such cases. Wage and hour regulations as well as occupational health and safety rules do not apply to migrant workers, rendering them more vulnerable to abuse.

There was little information on government enforcement of labor law or working conditions during the year. There were no health and safety inspections reported, and even previous routine inspections of tourist facilities such as hotels and major restaurants no longer occurred. The enforcement of labor law was lax in both rural and urban areas, since many inspector positions were vacant due to the violence. For example, there were only 20 inspectors for the agricultural sector to cover more than 10,000 workplaces. Penalties were not sufficient to deter violations.

Foreign workers, especially domestic workers, remained vulnerable to exploitative conditions. For example, the law does not legally entitle foreign female domestics to the same wages as Syrian domestics. The armed conflict's violence affected foreign workers, some of whom found it difficult to leave the country. The Ministry of Social Affairs and Labor is in charge of regulating employment agencies responsible for providing safe working conditions for migrant domestic workers, but the scope of oversight was unknown. In large cities Asian domestic workers sometimes overstayed their visas and continued to work in the country for years. The continued unrest resulted in the large-scale voluntary departure of foreign workers as demand for services significantly declined.